

25SMCV04359 25SMCV04359

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TENTATIVE RULING

August 5, 2026

25SMCV04359 (Brooks v. Nalu Vida
LLC)

RELEVANT BACKGROUND

On August 21, 2025,
plaintiff Lindsey Brooks (Plaintiff) filed her complaint against defendant Nalu
Vida LLC (Defendant) and Does 1-15, alleging two causes of action for general
negligence and premises liability.

This is a slip-and-fall
case. Plaintiff alleges that, on June 18, 2024, she suffered injuries to her
head, forearm, and right wrist/hand when she was walking in the bathroom at the
Nalu Vida restaurant located at 1 Washington Blvd. in Venice, CA 90292 (the
Premises). She alleges: "she slipped on
a clear liquid substance that was allowed to accumulate on the floor. The slip
caused Plaintiff to fall to the ground. Defendants knew or should have known of
the dangerous condition in the area. Defendants failed to barricade the area
and/or warn of the hazardous condition. The conduct of the Defendants and/or
its employees was below the standard of care and was the cause of the
Plaintiffs injuries." (Compl. at p. 4.) Relevant to the instant motion, in
Plaintiff's responses to Defendant's Form Interrogatories, she identifies
injuries to her head, right wrist/hand/forearm, and states that she was "still
limited in the duties she could perform" upon her return to work. (Redfield

Decl., ¶ 6, Ex. C.)

INSTANT MOTION

On March 16, 2026, Plaintiff filed the instant motion to quash or, in the alternative, for a protective order, regarding Defendant's subpoena for Plaintiff's medical, billing, and employment records. Plaintiff requests monetary sanctions in the amount of \$1,810.00. Defendant filed an opposition, and Plaintiff filed a reply.

DISCUSSION

I.

MOTION TO QUASH

When a subpoena requires the attendance of a witness or the production of books, documents, or other things... at the taking of a deposition, the court, upon motion reasonably made by the party... may make an order quashing the subpoena entirely, modifying it, or directing compliance with it upon such terms or conditions as the court shall declare, including protective orders. In addition, the court may make any other order as may be appropriate to protect the parties, the witness, or the consumer from unreasonable or oppressive demands including violations of a witnesses' or consumer's right of privacy." (Code of Civ. Proc., § 1987.1.)

"[T]he court may in its discretion award the amount of the reasonable expenses incurred in making or opposing the motion, including reasonable attorney's fees, if the court finds the motion was made or opposed in bad faith or without substantial justification or that one or more of the requirements of the subpoena was oppressive." (Id., § 1987.2, subd. (a).)

"Prior to the date called for in the subpoena duces tecum for the production of personal records, the subpoenaing party shall serve or cause to be served on the consumer whose records are being sought a copy of the subpoena duces tecum, of the affidavit supporting the issuance of the subpoena, if any, and of the notice described in subdivision (e), and proof of service as indicated in paragraph (1) of subdivision (c). This service shall be made as follows: [¶]...if he or she is a party, to his or her attorney of

record.” (Code Civ. Proc., § 1985.3.)

a.

Privacy Rights

Privacy provides a broader zone of protection than either the physician-patient privilege or the psychotherapist-patient privilege and protects medical records even when those privileges are inapplicable. (See *Davis v Superior Court* (1992) 7Cal.App.4th 1008, 1020 [personal injury plaintiff's psychotherapeutic records protected, in absence of any claim of mental or emotional distress]; *Board of Med.Quality Assur. v Gherardini* (1979) 93 Cal.App.3d 669 [patients' records in licensing agency's investigation of doctor].)

In determining whether a discovery order would violate state constitutional privacy rights, the Court applies the framework established in *Hill v. National Collegiate Athletic Assn.*

(1994) 7 Cal.4th 1, 26.) “The party asserting a privacy right must establish a legally protected privacy interest, an objectively reasonable expectation of privacy in the given circumstances, and a threatened intrusion that is serious.” (*Williams v. Superior Court* (2017) 3 Cal.5th 531, 552.)

Where a plaintiff puts his own medical condition at issue, the plaintiff has “substantially lowered” his expectation of privacy in his medical records. (*Britt v. Superior Court* (1978) 20 Cal.3d 844, 864 n.9 “[I]nsofar as a number of injuries or illnesses, some related and some unrelated to (defendant's conduct]) have contributed to a medical condition placed in issue by a plaintiff, defendant is entitled to obtain information as to all such injuries or illnesses”]; Evid. Code, § 1016 [“There is no privilege under this article as to a communication relevant to an issue concerning the mental or emotional condition of the patient if such issue has been tendered by ... [t]he patient.”].)

“The party seeking information may raise in response whatever legitimate and important countervailing interests disclosure serves, while the party seeking protection may identify feasible alternatives that serve the same interests or protective measures that would diminish the loss of privacy. A court must then balance

these competing considerations.” (Ibid.; See, e.g., *Fett v. Medical Bd. of California* (2016) 245 Cal.App.4th 211; *Kirchmeyer v. Helios Psychiatry Inc.* (2023) 89 Cal.App.5th 352, 360.)

Here, on

February 20, 2026, Defendant served a subpoena for medical, billing, and employment records from the healthcare providers and employers identified in Plaintiff’s discovery responses. (Redfield Decl., ¶7, Ex. D.) The subpoenas were directed to: Blue Shield of California; Providence St. John’s Health Center; Cedars-Sinai Medical Care Foundation; Hands On OT; Docs Spine & Orthopedics; Radnet Film Library; Prohealth Advanced Imaging; Weststar Physical Therapy Network; Select Physical Therapy; CVS Pharmacy, Inc.; Los Angeles City Fire Department; Los Angeles County Fire Department; Estate Properties; OBs Pub & Grill; and Tony P’s Dockside Grill. (Id.)

Plaintiff

moves to quash or, in the alternative, for a protective order regarding Defendant’s subpoena for Plaintiff’s medical, billing, and employment records. Specifically, Plaintiff requests that the subpoenas be quashed in their entirety or be limited to the body parts at issue as a result of the alleged incident. Plaintiff argues that the subpoenas are overly broad, invade her constitutional right to privacy, and represent an invasive fishing expedition.

In

opposition, Defendant argues that the subpoenas seek relevant information, do not constitute an invasion of privacy, and are not impermissibly broad.

The

Court finds that, although Plaintiff has placed her medical condition at issue, the subpoenas requesting “any and all” of Plaintiff’s medical and billing records are overly broad and should be limited to records pertaining to those of Plaintiff’s body parts that are specifically at issue, including her head and right wrist/hand/forearm, absent some future specific showing by Defendant of the potential relevance of other records, based on its review of those records or other evidence. (See *Britt v. Superior Court* (1978) 20 Cal.3d 844, 864 [“[P]laintiffs are ‘not obligated to sacrifice all privacy to see redress for a specific [physical], mental or emotional injury; while they may not withhold information which relates to any physical or mental condition which they have put in issue by

bringing this lawsuit, they are entitled to retain the confidentiality of all unrelated medical or psychotherapeutic treatment they may have undergone in the past.”].)

The

Court further finds that, although Plaintiff has placed her alleged loss of earnings at issue, the subpoena requesting “any and all” of Plaintiff’s employment records is overly broad and should be limited to records pertaining to wage, attendance, payroll records, salary, timesheets, sick leave, and those claims for Workers’ Compensation that pertain to Plaintiff’s head and right wrist/hand/forearm.

Accordingly,

Plaintiff’s motion to quash is GRANTED, IN PART, as set forth above.

The

Court declines to award monetary sanctions.

Moving

party to give notice.